

Court No. - 29

Case :- WRIT - C No. - 24224 of 2019

Petitioner :- Pradeep Kumar Gupta

Respondent :- U P Power Corporation Ltd. And 3 Others

Counsel for Petitioner :- Tushar Kant, Rakesh Prasad

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Pankaj Mithal, J.

Hon'ble Saral Srivastava, J.

Heard learned counsel for the petitioner and Sri Baleshwar Chaturvedi, learned counsel for respondent No.2.

The petitioner is challenging the citation dated 16.03.2019 for a sum of Rs. 8,61,140/- plus other charges in respect of the electricity dues and also the demand notice dated 24.01.2019 demanding the said amount.

The submission of counsel for the petitioner is that his electricity connection was disconnected on 01.11.2014 but even then incorrect bills were being raised and despite petitioner's representation, no order was passed. At the same time, the amount of Rs. 75,000/- deposited by the petitioner has not been adjusted.

The demand notice dated 24.04.2019 clearly reveals that the aforesaid demand of Rs. 8,61,396/- is up to the month of August, 2014 i.e. before the electricity connection of the petitioner was allegedly disconnected permanently. The receipt of deposit of Rs. 75,000/- on record is dated 31.03.2013. Therefore, the said amount has already been taken into consideration in issuing the demand notice dated 24.01.2019. It is up to the period of 8th August, 2014.

Moreover, the alleged disconnection of the petitioner's electricity connection is temporary and the petitioner would be issued certificate of permanent disconnection only on clearing the dues which stood in his name on the date of the aforesaid disconnection.

In view of the aforesaid facts and circumstances, we are of the considered opinion that there is no error or illegality in the impugned demand or the citation of recovery issued against the petitioner.

As far as the representations of the petitioner are concerned, the petitioner may press the same before the Executive Engineer

concerned who shall decide the same in accordance with law i.e. Clause 6.5 of the U.P. Electricity Supply Code, 2005 most expeditiously, if possible, within a period of 6 weeks from the date a certified copy of this order is produced before him.

The writ petition stands **disposed off**.

Order Date :- 5.8.2019

Nirmal Sinha